

Explaining Explanations:

How Legislators Explain their Policy Positions and How Citizens React

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Abstract

As Fenno noted, legislators frequently report their *explanations* for their votes and other Washington activities matter as much or more than the roll calls or activities themselves. However, little scholarship has studied legislator's explanations. We conducted a within-subjects field experiment using U.S. senators as subjects to study how legislators explain their policy positions to different constituency audiences. We find that senators are no less likely to respond to constituents that disagree with them, nor are they more likely to obscure their policy positions. Rather, they provide compensating information to constituents opposed to their positions, and reinforcing information to constituents aligned with their positions. We followed up the first study by conducting a between-subjects survey experiment of ordinary people to see how they reacted to the explaining strategies used by actual senators in the field experiment. We find that constituents are more likely to support senators who tailor their explanations, even when they disagree with the senators. The mechanism underlying this effect is that constituents are more likely to misreport legislators' true roll-call position when the messages are tailored, and more likely to perceive the legislators as moderate.

“[Political scientists should] spend a little less of our time explaining votes and a little more of our time explaining explanations.”- Richard Fenno, Home Style (1978, 141)

Studies of legislative policy representation have focused primarily on the correspondence between legislator roll-call decisions and constituent policy preferences (Miller and Stokes 1963; Bafumi and Herron 2010; Butler and Nickerson 2011; Kousser, Lewis, and Masket 2007; Peress 2013; Powell 1982; Tausanovitch and Warshaw 2013). Normative theorists have critiqued this focus on the delegate-style relationship between constituent and legislator preferences (Rehfeld 2009), and have argued that accountability should be defined to include communications to constituents by legislators about their actions in office. Accountability implies “that the representative has an obligation to explain...his or her past actions” (Mansbridge 2003, 516); and that a “representative...[has] to answer to another [person] for what he does” (Pitkin 1967, 55). This richer theoretical conception, moreover, echoes how legislators themselves believe their constituents hold them accountable for their voting records. Legislators frequently report their *explanations* for their votes and other Washington activities matter as much or more than the roll calls or activities themselves (Fenno 1978; Kingdon 1989). Thus, both in theory and practice, how a legislator votes is important, but so is how and whether the legislator explains the vote to constituents.

Yet, since Fenno’s pioneering research, little scholarship has systematically examined how legislators explain their roll calls, and how citizens respond to these explanations (though see McGraw 1991; Bianco 1994; McGraw, Best, and Timpone 1995), and only a few studies have assessed the effect of constituent communications to legislators (e.g., Butler and Broockman 2011; Butler, Karpowitz, and Pope 2012; Broockman 2013; Bergman 2009). Are legislators consistent in how they explain their policy positions to different constituency

audiences? Do they reveal how they voted, even to constituents with contrary positions? Do they tailor their messages to constituents who disagree with their roll call records? If so, are tailored messages or consistent messages the most effective way to curry electoral support with constituents? All of these questions are central to understanding the role of explanation in representation, and none of them are adequately answered by the existing scholarly literature.

We report the findings from a pair of experiments that address these questions. The first is a field experiment that allows us to identify the extent to which legislators tailor their explanations to suit the views of constituents. It employed a within-subjects design in which the subjects of the experiment, U.S. senators, received one letter from a constituent taking a position in favor of immigration reform; and a second letter from a different constituent opposing immigration reform. By comparing how senators responded to these two letters we can identify the frequency with which they tailor their messages to constituents with differing views on this issue, as well as the form their targeted explanations take. We find that senators typically reported how they voted on the key immigration initiative considered by the Senate, despite the fact that the constituents did not explicitly request this information. Moreover, they did not exhibit any tendency to hide this information from constituents who they knew would disagree with their roll-call decision.

Senators did, however, tailor other aspects of their messages to the views of the person they were addressing. When targeting letters to constituents who generally disagreed with them on immigration, senators frequently mentioned what we term *compensating* actions. For example, a senator who acknowledged voting for comprehensive immigration reform might also emphasize a vote in favor of the Secure Fence Act when addressing a constituent that holds anti-

immigration views.¹ This same senator might, instead, mention what we term *reinforcing* actions when writing a letter to a pro-immigration correspondent—describing, for instance, efforts to pass legislation similar to the DREAM Act.² In general, we find that senators target their communications by reporting a selective and specially tailored set of additional activities they have undertaken in Washington that accord with the view of a particular correspondent.

Building off of this finding, the second experiment we report examined how ordinary individuals react to both targeted and untargeted messages so that we can assess which types of legislator explanations are more effective. A novel aspect of our design is that our experimental stimuli are generated from actual communications written by U.S. senators, enhancing ecological validity and tightening the link between studying elite and mass behavior. We first identified a prototypical subset of six different letters from the actual correspondence provided by senators in our initial field experiment. Two of the letters were authored by senators (one pro-immigration; one anti-immigration) who wrote *untargeted* and essentially identical responses to pro-immigration and anti-immigration constituent queries. The other four letters came from two senators (one pro-immigration; one anti-immigration) who followed the more typical pattern of targeting their letters. These senators described *compensating* actions in their responses to constituents with views contrary to their own, and described *reinforcing* actions in their responses to constituents with views in accord with their own.

We recruited experimental subjects through Amazon Mechanical Turk,³ asked them to

¹ The Secure Fence Act allocated funds to build additional fencing and surveillance along the U.S.-Mexico border, granted the Department of Homeland Security a greater role in immigration enforcement, and included other enforcement provisions.

² The DREAM (Development, Relief, and Education for Alien Minors) Act proposed to provide conditional permanent residency for undocumented persons who arrived in the U.S. as minors and who fulfilled requirements such as serving in the military or attending college.

³ We describe the sample in more detail below but note here that Mechanical Turk has been shown to be an effective way to study political behavior (Berinsky, Huber, and Lenz 2012), and articles using data mainly generated from

complete a short pre-treatment questionnaire, randomly assigned them to read one of the six letters, and then asked them to complete a post-treatment questionnaire. We found that the efforts of senators to tailor their explanations to constituents' policy views were extremely effective, influencing constituents' perceptions about the policy positions of the senators as well as their overall attitudes towards the senators. In each letter we used as a treatment, the senator revealed his or her true roll-call position on the key comprehensive immigration reform roll call. Yet, when compared to respondents who were assigned an *untargeted* letter or a *reinforcing* letter, those assigned a *compensating* letter were much more likely to misreport the senator's actual roll call decision. Those who received *compensating* letters were also more likely to view the senator who wrote the letter as moderate in general, and as having middle-of-the road preferences on immigration specifically. Accordingly, respondents who disagreed with a senator's actual position were much more likely to say they would vote for the senator if they received a *compensating* letter, rather than a *reinforcing* or *untargeted* letter. Thus the tendency of senators to mention *compensating* actions to disagreeing constituents appears to be an effective electoral strategy.

The normative implications for democratic representation are significant. Our results imply that legislators are able to explain away unpopular positions, and that voters exposed to such explanations reward or punish legislators for positions they express and not for positions revealed by their actual roll calls on public policy in Washington. In addition to the theoretical significance, to our knowledge, we have fielded the first experiment ever conducted on all 100 sitting U.S. senators; and the only citizen-level experiment to utilize actual legislator messages in order to evaluate the effectiveness of legislative explanations (though see McGraw 1991 and

Mechanical Turk have been published by the leading political science journals such as the *American Political Science Review* (e.g. Huber, Hill, and Lenz 2012).

McGraw, Best, and Timpone 1995, who used fictional explanations in a laboratory setting). Field experimental studies in political science tend to focus on citizen behavior (e.g., Arceneaux and Nickerson 2009; Gerber and Green 2000; Green and Gerber 2003; Gerber et al. 2011), and rarely are field experiments employed to study political institutions or representation (see review in Grose 2013). Field experiments analyzing legislatures have never focused on legislator explanations, but instead on whether legislators favor certain types of constituents (Butler and Broockman 2011; Broockman 2013; Chin, Bond, and Geva 2000), whether legislators are more likely to respond to service or policy requests from constituents (Butler, Karpowitz, and Pope 2012), and whether legislators change their votes in response to constituency opinion (Bergan 2009; Butler and Nickerson 2011).

There are three novel aspects to the field experiment that we ran. First, while most extant studies examine state legislators, we analyze the U.S. Congress, which has substantively been an important topic of study in American politics. Second, while existing studies mainly focus on responsiveness (i.e., whether a legislators responded to a constituency service request or not), our concern is more on the *explanation* and *content* of the communication. Third, we bridge the study of behavior and institutions by tying legislative communication to constituent responses. By coupling a field experiment of legislator explanations with a survey experiment of citizen responses to these explanations, we are better able to determine what causes differences in legislator responsiveness and constituent feedback than examining only one target population (elites or masses) in isolation.

Explanations and Representation

Explanation of Washington activities is one of the three components of a legislator's "home style" identified by Fenno (1978). The other two components, presentation of self and

allocation decisions, have received significantly more scholarly attention (e.g., Adler, Gent, and Overmeyer 1998; Cain, Ferejohn, and Fiorina 1987; Grimmer 2013; Grimmer, Messing, and Westwood 2012; Grose and Middlemass 2010; Lipinski and Bianco 2003; Lipinski 2004; Parker 1986; Parker and Goodman 2009; Wichowsky 2012). The lack of systematic study of explanations is surprising, as legislators' explanations are viewed as key links in the representative process by legislators and scholars alike. Interview-based studies of how members of Congress make voting decisions emphasize the tendency of legislators to actively anticipate the possibility that they will be called on to explain a vote when deciding how to cast a roll call (Kingdon 1989, 47). At base, this process can lead legislators to critically rethink and perhaps abandon a position they believe would be difficult to explain. But it also has effects that echo through the entire legislative process, placing a premium on designing policies and procedural strategies in ways that afford explanatory opportunities to potential supporters (Kingdon 1989, 51-54; Arnold 1990), in addition to attempts to divide or embarrass the minority party.

Beyond its practical importance scholars also argue that explaining plays a key theoretical role in representative democracy. Fenno argues that "[the] explanatory process helps link Congress and the citizenry.... Explanation involves legitimation, whereby the acts of representatives are accepted as authoritative by those they represent" (1978, 169). A series of normative theorists have expanded upon this view (Rehfeld 2009; Mansbridge 2003; Pitkin 1967). Yet basic questions remain about how legislators explain their votes, how the electorate interprets such explanations, and how the interaction influences the functioning of our democracy.

Explanatory Consistency?

One basic, yet unresolved, question is the extent to which legislators vary their

explanations depending on the views of their audience. Fenno (1978, 157), studying 18 U.S. House members, found high levels of explanatory consistency when examining what legislators said to different groups of constituents. He noted that “I had expected to find members of Congress explaining their Washington activity differently to their various constituencies.... But I have found little trace of such explanatory chameleons in my travels....[Legislators] give the same explanations for their Washington activity before people who disagree with them as they give before people who agree with them—before non-supporters as well as supporters, committed as well as uncommitted, and from one end to the other in the most segmented of districts.” Fenno continues to note that consistency and similarity in which legislators “explained their votes or voting record before unsympathetic reelection constituencies surprised me.”

In contrast to Fenno, Mayhew (1974, 63) claims that “Outside the roll call process the congressman is usually able to tailor his position to suit his audiences.... Division or uncertainty in the constituency calls for waffling.... On a controversial issue a Capitol Hill office normally prepares two form letters to send out to constituent letter writers—one for the pros and one (not directly contradictory) for the antis.” Mayhew’s implication is that if two constituents have opposing viewpoints to one another, the legislator is most likely to gain both of their votes by taking different, tailored positions for each constituent (see also Fiorina 1989). Thus, two landmark studies of the textbook Congress leave us with divergent answers to the basic question of the extent to which legislators tailor their messages to suit constituents.

There is reason to suspect that tailored messages to targeted constituent groups may be more common in contemporary U.S. politics than during the era in which Fenno and Mayhew wrote. Such micro-targeting appears to be quite common in modern campaigns (Hillygus and Shields 2009) and this tailoring may extend to legislator explanations. Moreover, the increasing

“disconnect” between the polarized views of legislators and the more moderate views of their constituents (Bafumi and Herron 2010; Fiorina and Abrams 2011) may increase the pressure to offer tailored explanations of their voting records. In the past, when legislators had more varied and centrist voting records, they may have had greater freedom to represent these records in a consistent manner without alienating the middle-of-the-road voters in their districts. As they have become more extreme and voted more frequently with their parties, the range of votes which could become electoral liabilities with pivotal members of the electorate may have grown.

Others studying explanations have not evaluated the claim that legislators engage in consistent explanations to all constituents. Bianco (1994) interviewed members of Congress to determine whether explanations would allow them to justify unpopular votes, but did not consider explanations by members to constituents who agreed with the legislator’s decision. McGraw (1991) and McGraw, Best, and Timpone (1995) argue that legislator explanations may be used to persuade or make justifications to constituents, or to provide excuses or avoid blame for unpopular decisions. Implicit in Bianco’s and McGraw, Best, and Timpone’s framings of legislator explanations is that legislators only must explain votes to constituents *opposed* to the legislators’ decision. Legislators in congruence with constituency opinion have no need to make excuses or persuade constituents. Yet legislators are likely to be in dialogue with both types of constituents, and understanding how they communicate to each type is essential for identifying the variation in their explanatory strategies.

In sum, there is clearly an unresolved puzzle regarding legislator explanations. Do legislators make different statements to different constituents, revealing only to supporters how they voted while staying silent on their roll-call positions to constituents who would oppose their policy choices (per Mayhew)? Or do legislators simply report back the same explanation—

including how they voted on a roll call and nothing more—to both supporters and opponents (per Fenno)? And which of these strategies is most effective at persuading voters? Before turning to the latter question of effectiveness we discuss the field experiment aimed at identifying the nature of and variation in legislator’s explanation of their voting records.

Experiment 1: How Do Senators Explain Their Positions to Constituents?

We conducted a within-subjects field experiment using U.S. senators serving in the 110th Congress in 2007. In the experiment, each U.S. senator was subject to two treatments.⁴ On March 5, 2007, we sent half of the senators a letter that was pro-immigration reform and half were sent a letter that was anti-immigration reform.

Eight weeks later, on April 30 2007, we sent another wave of letters. Senators to whom we had sent the anti-immigration letter in March were sent the pro-immigration letter, and the senators to whom we had sent the pro-immigration letter in March were sent the anti-immigration letter. The two treatments were counterbalanced in this way in an attempt to control for the impact of time.⁵ Because the pro- and anti- letters were similar in format (though not in content) we staggered their arrival to avoid raising suspicion about their authenticity.

We attempted to craft the letters to be as authentic as possible; therefore, they purposely contained common misspellings and grammatical errors. The language used in each letter was

⁴ Because we are studying public elected officials, this study was not subject to IRB approval. Nevertheless, we submitted the study design to a university IRB board, and it was formally exempted from guidelines covering human subjects because our subjects are not “human” as defined by the IRB (they are instead public officials). Nonetheless, we did our best to reduce deception in the study by recruiting actual constituents to send the letters, and there is minimal risk to participants in the experiment on senators. The second experiment that focuses on regular individuals, discussed later, was submitted and approved by IRB.

⁵ Carryover effects due to the time or order that the treatment is administered can sometimes occur in within-subjects experiments. Most commonly, these effects might occur in drug trials, where the first treatment has a measurable effect that carries over even after the second treatment is implemented. Carryover effects are not likely to be an issue in this study given the deluge of mail the U.S. senate was receiving on this issue in spring 2007. It is hard to imagine that one letter sent in March on anti-immigration would affect the position taken in response to a pro-immigration letter received eight weeks later, as senate staffers were likely responding to a number of immigration-related constituent queries at this time. Nevertheless, we counterbalance the two letters.

chosen in part to be similar to language used by citizens with opinions on immigration (e.g., use of “illegal immigrant” instead of “undocumented individual”). Additionally, while the content of the message in the two letters was distinct, we wrote the letters to be approximately the same length and using the same phrasings where possible. The exact texts of the pro- and anti-immigration letters, which were sent to all 100 senators, can be found in Appendix 1. The total number of senators analyzed is 97. We were unable to receive responses from three senators due to death, resignation, or other reasons.⁶ Treatment letters were typewritten using a word processor and printed on a laser printer.

Two constituents in all fifty states were utilized to serve as the sender of the two letters to senators, and the eventual recipient of senators’ responses. We recruited two confederates in most of the fifty states who were willing to receive the senator’s response at their home addresses, as one confederate was needed to send the anti-immigration letter and the second confederate was required to send the pro-immigration letter. In states where we were unable to recruit confederates, we purchased mailboxes.⁷ Within each treatment group, the only differences in the letters sent to each senator therefore were the names and addresses of the constituent. No other field experiment has sought to contact all members of the U.S. Senate using only home state constituents. Our study’s significantly higher response rates (compared to response rates of state legislators in other studies) may have been due to the legislators being contacted by home state constituents or the fact that we studied the U.S. Senate.

When confederates received replies from the senators, they mailed the responses to us in

⁶ Craig Thomas (R-WY) died and Trent Lott (R-MS) resigned in 2007, and thus we are unable to interpret non-response from these senators as intentional even though they were initially included in our sample. Sen. Ted Kennedy’s office mistakenly sent a letter about Medicare instead of immigration to one of our constituents, and thus his two letters were incomparable and he was dropped.

⁷ Given that confederates were used, actual constituents sent the letters to the legislators. In the instances of the mailboxes, the name used for the constituent was one of the authors of the study. Thus, deception of legislators in the experiment was minimal.

self-addressed stamped envelopes provided by the researchers to the confederates (those sent to purchased mailboxes were automatically forwarded to the researchers). We assiduously followed up with confederates whenever responses were not received, calling or emailing to ask if they had been received. After nine months, we sent a follow-up to each senate office that had not yet responded to the initial query. This follow-up was the same text as the letter sent initially.

In total, our two letters from constituents yielded responses from a large majority of senators, as 88 of 97 senators wrote a response letter to at least one of the treatments. Fifty-six senators responded to both the anti- and pro-immigration letters from constituents and their responses compose the 112 within-subject observations that are the focus of much of our further analysis.⁸ Of the 56 pairs of letters, 20 (36%) were substantively identical. Thus, a clear majority of senators who responded to both letters did so in a way that made message targeting possible.

Immigration was chosen as the subject of the constituent letters as the issue was at the forefront of policy discussions by Washington elites and attentive publics during the time period in which the study was fielded. During the 110th Congress, the Comprehensive Immigration Reform Act of 2007 and related measures were debated in the U.S. Senate. The comprehensive immigration reform bill did not come up for a direct vote on the floor due to filibusters by senators opposed to the bill. On June 28, 2007, there was a cloture vote to end a filibuster of the comprehensive immigration reform bill.⁹ Sixty votes were needed to move forward with the bill, but the cloture vote received support from only 46 senators. This cloture vote effectively killed

⁸ To assess selection effects, we later model more than just these 56 subjects. However, to control for the subject-specific factors, we only examine these 56 in the initial analyses.

⁹ The timing of this roll call soon after our letters were mailed is ideal. Senators' revealed preferences were unobserved at the time the constituent wrote the letter, though senators soon were required to take a critical vote on the policy. Because the senate debate on a specific immigration reform bill was concurrent with the receipt of the constituent letters, every senator had the option to explicitly state how he or she voted on the key roll call or the immigration reform bill generally in responses to constituents. Had we made the topic of the letters a policy that had been resolved or had been voted on previously, it would not approximate the reality of constituent letters or the strategic, real-time considerations senators and their staffs make in providing explanations to constituents.

the comprehensive immigration reform bill. We used this roll call as the key vote on the immigration bill during the 110th Congress to identify whether each senator was “pro” or “anti” immigration reform, and reclassified the letters each senator received as coming from constituents who shared or opposed the senator’s views on immigration.¹⁰ We classified senators who voted against cloture as opposed to the comprehensive immigration reform bill and those that favored cloture as supportive of the comprehensive immigration reform bill. For ease of interpretation, in the remainder of the paper we refer to senators who voted for cloture as taking the pro-immigration position and those who voted against cloture as taking the anti-immigration position.

Within-Subjects Design

As mentioned earlier, the field experiment is a within-subjects design. Within-subjects designs are usually implemented when few subjects are available for the study (Boniface 1995, 95; Girden 1992, 3) and because they are generally more statistically efficient than other experimental designs (Boniface 1995, 94). Given our interest in studying position-taking in the U.S. Senate, and our maximum potential subject pool is only 100, a within-subjects design was optimal.¹¹ Moreover, the within-subject design allows us to directly measure at the individual

¹⁰ The final cloture vote to extend debate was held on June 28, 2007 and was considered, as reported by *Congressional Quarterly*, as the critical vote on immigration during the 110th Congress (Sandler 2007). There were two other earlier cloture votes (on June 7 and earlier in the day on June 28) that also failed to reach the 60 votes needed, but they did not effectively kill the bill as happened with the final June 28 cloture vote. Thus, we use this June 28 cloture vote to identify the senator as pro- or anti-immigration reform. . We also estimated ideal points (using Poole’s optimal classification algorithm) on all immigration votes (including a number of amendments) in the 110th Congress, classifying all senators along an immigration scale measured using the optimal classification method. The results presented in the text are similar to results based on this measure incorporating all immigration roll calls, and thus we rely on the simpler measure of classifying a senator’s roll-call position on the key cloture vote as “agreeing” or “disagreeing” with the constituent.

¹¹ For feasibility purposes, we studied the U.S. Senate instead of the U.S. House or other legislatures that may have had more than 100 subjects. As described above, we were able to identify confederates or purchase mailboxes in all 50 states so that we could have a constituent mail a letter to their senators. The ability to identify 435 confederates in every U.S. House district (or even a random sample that was significantly larger than n=100) was not feasible. In 2005, we conducted a pilot study on a different set of issues (gun control) in order to assess the likelihood of

level rather than infer from population statistics whether senators offered consistent explanations. This is especially important in small samples because ignorability stemming from between-subjects random assignment is a large sample property.

In other words, an important strength of within-subjects designs is that all possible confounding factors related to each individual subject are controlled for. In our case, factors specific to each senator (e.g., political party, intention to run for reelection) are constant across treated and control observations. Thus, any variation that exists between multiple positions taken by the same senator can be attributable only to some feature of the treatment that prompts the senator's position. Further, one disadvantage noted about within-subject designs related to the "fundamental problem of causal inference"—being exposed to a treatment fundamentally changes the unit of observation—does not likely apply in this setting because it is highly unlikely that reading one treatment letter (among the thousands received by a congressional office) would cause the office to change their behavior in response to the other treatment letter. The design therefore allowed us to conduct an inquiry of the necessarily limited "sample" of sitting senators that enjoys the benefits of external validity inherent to the field experimental approach.

Dependent Variables: Measures of Legislator Responsiveness and Explanations

The first dependent variable that measures whether senators tailor their messages or whether they offer the same explanations to different constituents is simply whether the senators responded to both constituent queries. If the rate at which senators responded to constituents who disagreed with their positions on immigration differs from the rate at which senators responded to constituents who agreed with their positions, then it would provide *prima facie* evidence of message targeting by the senators. However, responsiveness is not the only relevant outcome to

response and to determine any issues that may arise in our main study. These letters were sent to all 100 senators, though all 100 senators did not respond. A sample of fewer than 100 senators in the pilot study suggested the need for a within-subjects design.

study, especially given that we are interested in the content of legislator explanations, and responding *per se* is a very low-cost activity.

Since the treatment letters to the senators did not ask how they voted on comprehensive immigration reform but instead laid out clear positions from the constituent in favor or opposed to immigration reform, our letters provide an excellent test to determine whether senators are forthright with their constituents or whether they will remain vague about their roll-call vote, and whether senators' vague or straightforward explanations are conditional upon the constituent's position. The second dependent variable, *Mention of roll-call position*, is coded 1 if the senator mentioned how he or she voted on the cloture vote and 0 if he or she did not.¹² One might anticipate that senators are less likely to reveal their roll calls to constituents who they know do not agree with their positions versus to those who they know agree. That is, senators who cast the roll call favoring the immigration bill will be less likely to mention their roll call position to constituents who are anti-immigration than to constituents who are pro-immigration; and senators who cast the roll call killing the immigration bill will be less likely to mention their roll call position to constituents who are pro-immigration compared to constituents who are anti-immigration.

The third and fourth dependent variables encode whether the senators' offered examples of additional actions that were pro-immigration or anti-immigration. It is possible that senators will tailor their explanations of their positions to constituents so that it appears that they agree with the constituents by offering examples of *compensating* or *reinforcing actions* in which the senators engaged.

The third dependent variable, *Mentions pro-immigration action*, was coded 1 if the

¹² There were two other substantively identical cloture votes held before the final cloture vote. If the senator mentioned their position on any or all of these cloture votes, we used them in the coding of this dependent variable.

senator mentioned an institutional action or actions that are supportive of immigration or immigrants separate from comprehensive immigration reform bill roll call (and coded 0 if not). These institutional actions include votes on amendments, amendments offered by the senator, other bills sponsored or co-sponsored, or actions taken by executive branch officials. An example that would be coded 1 for this measure is one Northeastern Democratic senator's response to the pro-immigration constituent where he pointed to a specific amendment: "That is why I introduced an amendment that enables parents of U.S. citizens to more easily unite with their families here in the United States by increasing the number of green cards allocated to them...." One might anticipate that senators will be more likely to mention additional pro-immigration positions when speaking to a pro-immigration constituent. If the senator disagrees with the constituent on the immigration roll call, mention of pro-immigration actions will be aimed at *compensating* for that disagreement, and if the senator agrees with the constituent mention of pro-immigration actions will be aimed at *reinforcing* for that agreement.

The fourth dependent variable, *Mentions anti-immigration actions*, was coded 1 if the senator mentioned an institutional action or actions that were restrictive of immigration or that were anti-immigration and 0 if not. Like the previous measure, this includes amendments offered or voted on, bills sponsored or co-sponsored, executive branch actions, and other legislative or institutional actions. An example of a senator's letter coded 1 for this measure was a Midwestern Democratic senator's response to the anti-immigration constituent where he stated "I was proud to vote for an amendment by Senator Graham that...would provide resources for greater border security. This amendment would provide \$3 billion in emergency spending for operational control of the border." The senator continued to detail that the president and Department of Homeland Security were implementing this amendment. One might anticipate that senators will

be more likely to mention anti-immigration action in an effort to *compensate* for their disagreement or *reinforce* their agreement with constituents writing the anti-immigration letters. The three authors read and coded every letter from the senators in order to generate the dependent variables used in the analyses.¹³

These four dependent variables allow us to gauge the extent to which the senators tailor their explanations to different audiences. If senators are “straight shooters,” giving the same explanation to all constituencies (Fenno 1978), they will be equally likely to reveal how they voted on cloture to both pro-immigration and anti-immigration constituents; and they will also not systematically manipulate the extent to which they mention additional pro-immigration or anti-immigration compensating actions. On the other hand, if senators tailor their explanations, we anticipate that one or more of these variables will allow us to identify those efforts.

Results of Experiment 1

Senators are not more likely to respond to constituents who agree with their position. As shown in the first column of Table 1, when the constituent expressed a similar position to the senator’s roll call on immigration, 71.1% of letters received a response. 75.3% of letters sent from disagreeing constituents received responses, an insignificant difference ($p = 0.58$, two-tailed). Interestingly, there was also no difference across treatment conditions in whether the senator mentioned how she voted on the key immigration roll call (53.6% vs. 51.8%, $p = 0.99$). Thus, on these two scores, senators did not appear to meaningfully tailor their explanations in accord with the differing views of the constituents who wrote letters about immigration. This lack of tailoring is somewhat surprising given that “avoiding issue discussion in the district is

¹³ In instances where the authors did not independently agree on codings of these measures, deliberations among the three authors occurred in order to determine the coding decision. Because coding decisions were made via these deliberations, standard concepts of intercoder reliability (i.e., assessment of the concordance of independent codings) do not apply here.

typically an easy task for representatives, since they control most of the communication” (Larson 1990).

However, senators appear to have strategically changed whether they mentioned pro-immigration or anti-immigration actions in their explanations depending on the constituent’s position (see Table 2). When receiving a pro-immigration letter from a constituent, 23.2% of letters mentioned pro-immigration actions (see second column of results in Table 2). This was nearly double the 12.5% of letters that mentioned pro-immigration actions in response to anti-immigration letters, a difference that is statistically significant ($p = .07$). We found a symmetric pattern when examining anti-immigration actions mentioned by the senators. Pro-immigration letters from constituents resulted in 42.8% of letters mentioning anti-immigration actions, significantly lower than the 52.8% of letters that mentioned such actions in response to anti-immigration constituents ($p = .04$). We can also estimate the difference-in-difference: whether the difference in letters mentioning pro- vs. anti-immigration actions varied by constituent position. As shown in the final column of Table 2, the difference-in-difference estimate is a substantively large 23.2 percentage points and is statistically significant ($p < .001$). Anti-immigration constituent positions produced senator letters that were 42.8 percentage points more likely to mention anti-immigration actions than pro-immigration actions; this difference was only 19.6 percentage points in response to pro-immigration constituent positions (see last column, Table 2).

Thus, in Experiment 1, we observed little difference in the response rates and whether senators mentioned their positions on the key roll-call vote conditional on constituent positions. This supports Fenno’s finding (1978) that legislators are willing to give similar explanations to different constituent groups. Senators do not seem to react to disagreeing constituents by either

not responding to them or obscuring their roll-call votes. However, per Mayhew (1974), senators appear to explain their positions in ways that allow more strategic latitude that is only captured by our third and fourth dependent variables. In short, they make a point of mentioning Washington actions that accord with the views expressed by the constituent with whom they are corresponding, and by failing to mention actions that do not. When senators are in fundamental agreement with a constituent this type of letter has the effect of *reinforcing* that agreement. When they find themselves in disagreement, however, it has the effect of *compensating* for that disagreement. Only by examining the content of the letters carefully did we observe this difference. In our second experiment, we investigate how constituents respond to letters that are targeted in this fashion.

Experiment 2: How Do Citizens Respond to Tailored Versus Untailored Messages?

We showed in Experiment 1 that senators responding to constituent queries about immigration tend to selectively emphasize *compensating* and *reinforcing* actions they have taken which are in accord with the preferences of their constituent-correspondents and de-emphasize those that are not. This suggests that legislators engage in this behavior to curry favor with voters on both sides of an issue. However, in Experiment 1, we also found that legislators do not tailor or hide their positions on key roll calls. Thus, any tailoring of explanations is second order, focusing on additional compensating or reinforcing legislator actions. Given that the tailoring is subtle, we are left with the question: Is this method of tailoring effective at shaping constituent perceptions of legislators' issue positions? Can a legislator's explanation of a key vote, when couched along with compensating actions, cause a citizen to perceive the legislator as closer on the issues? Can tailored explanations cause constituents to rate the senator more highly or be more likely to vote for the senator than a senator who does not offer tailored explanations?

While the classical literature on representation and explanations presents a clear, heretofore unresolved puzzle about whether legislators tailor their explanations to different constituency audiences, there is much less in regards to whether differences in legislator explanations affect individual attitudes.

Are tailored explanations effective at causing voters to think a legislator agrees with them?

Legislators clearly state their roll-call positions in messages to both constituents that agree and do not agree with the legislators' roll-call votes. Thus, a naïve expectation would be that legislators' tailored messages will not be effective at causing constituents to view greater issue or ideological congruence with their senator. Kingdon (1989) argued that any reasonable explanation was useful for communicating with constituents, implying that the content or tailoring of the explanation does not matter as much as the simple act of explaining. Bianco (1994) argues that explanations are not effective mechanisms to persuade or shift constituent opinion about the legislator's past roll-call decision as it is not possible to explain away an unpopular roll call. According to this view, tailored legislator explanations that focus on reinforcing or compensating actions will not cause the constituent to view the legislator's policy record any differently than if an untailored, straightforward explanation is offered.

In contrast, one possible effect of tailored explanations on constituent opinion would be that individuals would perceive greater issue congruence overall with their legislators or perceive that their legislators had a position on immigration more in line with the constituent's preference. Larson (1990) shows that exposure to issue-specific newspaper articles about a legislator increases constituent learning about the legislator's involvement with that issue. McGraw, Timpone, and Bruck (1993) argue that explanations and political accounts can be used to persuade voters. Following this logic, it is possible that an explanation tailored toward the issue

opinion of the constituent may persuade the constituent to think of the legislator as working in the constituent's policy interests. Even when the legislator votes contrary to constituent preferences, the legislator's explanation with compensating actions favored by the constituent could be effective at shifting the constituent's perception of the legislator's true policy position.

Alternatively, a tailored yet inconsistent explanation by a legislator (e.g., detailing a pro-immigration key roll call while at the same time providing examples of anti-immigration compensating actions) may "muddy the waters" of constituent perception. A less-consistent legislator message could cause constituents to be less certain of the true policy position of the legislator. In sum, the effectiveness of tailored explanations and untailored explanations on constituent perceptions of the legislators' policy and ideological positions has not been tested even though we have competing expectations from the extant work on the topic.

Are tailored explanations effective at enhancing voter opinion of senators?

Also never before tested is whether tailored versus untailored explanations are more effective at increasing constituent approval of and the likelihood of voting for a senator. If tailoring a message increases a constituent's perceived issue congruence with the senator, this is likely to also help at the ballot box. Mayhew (1974) argues that legislators are rewarded for taking positions and not "achieving effects." This suggests that explanations that include compensating and reinforcing positions are rewarded at the ballot box more than a legislator explanation that clearly states how the legislator voted on a key roll call without an attempt to tailor other positions. Similarly, implicit in Fenno's (1978) discussion is that the explanation may increase the likelihood of a constituent supporting the legislator in the future—as explanations were key to building trust between representative and constituent.

On the other hand, tailored legislator explanations may be no better than untailored

explanations for increasing voter approval of senators or convincing voters to vote for the incumbent for reelection. Echoing this null expectation, Kingdon (1989) argued that explanations are given by legislators because something must be said on specific policies when queried by constituents. The act of saying something, anything really, is more important to constituents than the content of what is said. Legislator explanations may simply be a form of responsive advertising, where the legislator uses communications to enhance name recognition. This view would imply that tailored explanations would be no better or worse than non-tailored explanations to constituents as all would provide an attempt at explanatory advertising.

Research design of Experiment 2

To determine whether tailored legislator explanations are effective at shifting individual opinion, we conducted a between-subjects survey experiment to see how ordinary people responded to these types of tailored messages.¹⁴ To enhance the external validity of the experiment, we used a selection of the actual letters we received in Experiment 1 as stimuli. As described below, for both senators who took pro- and anti-immigration positions we identified two types of exemplary letters: (1) those that selectively mention actions depending on whether they accord with the views of a constituent-correspondent; and (2) those that use consistent language across letters regardless of the views of a constituent correspondent. By comparing how respondents evaluate the senators who sent targeted letters to the senators who sent consistent letters, we can assess whether targeting is an effective strategy to enhance constituents' opinions of their legislators and their legislators' policy positions. The basic structure of the experiment was as follows: (1) we first measured pre-treatment attitudes on immigration policy; (2) we next presented respondents one randomly-assigned letter written by a senator in our first experiment;

¹⁴ A between-subjects design was utilized in experiment 2 as we did not face the sample size concerns of Experiment 1.

(3) we then asked them a series of post-treatment questions about the senator that represent our outcome measures.

Subjects and Data

We collected data from 1,195 respondents over Amazon's Mechanical Turk (MTurk). As explained below, the experiment required respondents to carefully read and respond to questions about a somewhat-lengthy letter. Accordingly, we chose not to run the study on a traditional Internet panel (e.g., GfK/Knowledge Networks or YouGov/Polimetrix) because the cost for a survey as long as ours would have been prohibitive. Further, those platforms are not designed for respondents to read lengthy communications. One environment conducive to running the study would be a traditional experimental laboratory on a college campus, as respondents are captive and can be monitored so that they focus closely on the task. Because we wanted to obtain a more diverse and national sample, we used MTurk in order to obtain a more externally-valid sample while at the same time interviewing a group of respondents, like laboratory subjects, that could devote a sufficient amount of time and attention to reading the letters. Berinsky, Huber, and Lenz (2012) show that political science researchers can effectively use MTurk to obtain more diverse samples compared to traditional laboratory studies of convenience samples. The authors show how MTurk subjects are not widely out of line on several key variables compared to interviews conducted by the American National Election Studies (ANES). We compare demographic and political characteristics of our sample to the 2008 ANES in Online Appendix 1.

Pre-Treatment Immigration Attitude

We first measured respondents' views on the immigration legislation by asking them: "A comprehensive immigration reform proposal that would provide a path to citizenship for illegal immigrants was recently considered by the United States Senate. Do you support or oppose this

proposal?” (response options: “strongly support,” “somewhat support,” “somewhat oppose,” “strongly oppose”). We bifurcated responses into those expressing support and opposition so as to tie them to the senator’s dichotomous position on the legislation (see Online Appendix 2 for analyses considering the extremity of respondents’ positions).

Treatments

From the set of letters we received in Experiment 1, we selected prototypical letters of six types, representing the six treatment conditions to which respondents were assigned.¹⁵ Two letters were from Senator A,¹⁶ a pro-immigration senator who sent different, tailored letters to a pro-immigration constituent (Treatment Group 1) and an anti-immigration constituent (Treatment Group 2). These two letters are typical of what we found broadly from senators (see Table 2), where the tailored letters mentioned actions that would appeal to the policy preferences of the constituent. The third letter was from Senator B, a pro-immigration senator who sent the same, untailored letter to both the pro-immigration and anti-immigration constituent in Experiment 1 (Treatment Group 3). In this untailored letter, the senator unequivocally states support for immigration. Even though an untailored message was less common empirically in Experiment 1, we use a completely untailored pro-immigration message as a contrast case (Treatment 3) to determine whether a tailored message from a pro-immigration senator (Treatments 1 and 2) is effective at shifting mass opinion.

The remaining three conditions were parallel to the first three, except that the senator writing the letter voted against the immigration bill. Two letters were from Senator C, an anti-immigration senator who sent different, tailored letters to an anti-immigration constituent (Treatment Group 4) and a pro-immigration constituent (Treatment Group 5). The sixth and final

¹⁵ The letters were edited down so that they each had similar length.

¹⁶ As explained below, we kept the identities of the senator confidential in the experiment. We also keep the senators’ identities anonymous in the paper.

letter was from Senator D, an anti-immigration senator who sent the same, untailored letter to both the pro-immigration and anti-immigration constituent (Treatment Group 6). The senator in this final letter unequivocally was opposed to the immigration reform bill.

The text of the treatment letters is presented in Appendix 2. The treatment letters as they appeared to constituents are presented in Online Appendix 3. We enhanced the realism and authenticity of the letters as much as possible by keeping them on Senate letterhead. We also rendered them anonymous by redacting key identifying information about each senator. With respect to both reality and perception, individuals were responding to actual correspondence written by U.S. senators and likely believed that the letters were from senators. Also note that all of the letters, regardless of whether the senator tailored the letter or not, mention the senator's actual roll-call vote on the immigration legislation. This mimics the predominant pattern we observed in the first experiment we conducted using senators. It also means that the survey experiment represents a "hard test" for the effectiveness of rhetoric to persuade constituents since the senators' discussion of compensating actions would have to overcome their explicitly-stated position on the roll-call vote. For all post-treatment questions related to the content of the letters, the letters were also visible to the respondents. Additionally, respondents have been primed to seek the voting information in the letter due to the measurement of the pre-treatment attitude.

We also randomized whether respondents were told that the senator was a "Republican" or a "Democrat." We did this to provide more information to respondents so that they would not try to infer the partisanship of the senator. Results were fairly consistent across conditions so we pool them in the manuscript. We present full results by senator partisanship in Online Appendix 4.

For the purposes of analysis, we collapse the six treatment conditions into three variables, using each respondent's stated position on immigration that was measured pre-treatment: (1) an indicator for a letter targeted *toward* the survey respondent (e.g., a pro-immigration senator's letter addressed to a pro-immigration constituent if the respondent is pro-immigration); (2) an indicator for a letter targeted *away* from the survey respondent (e.g., a pro-immigration senator's letter addressed to a pro-immigration constituent if the respondent is anti-immigration); and (3) an indicator representing an untargeted letter. In Online Appendix 5, we present results separately for pro-immigration and anti-immigration senators.

Dependent Variables: Measures of Effectiveness of Legislator Explanations

We first focus on dependent variables that measure respondent perceptions of the senator's issue position.

Constituent Perceptions of the Senator's Position. We assessed whether mentioning a selective set of actions affected individuals' perceptions of the senator's position. In other words, by tailoring the letter to the individual's position, can the senator convince the respondent that he is on her side (or at least obscure his position so that the respondent is uncertain)? We asked respondents five questions that measure perceptions of the senator's positions:

- First, we asked them: "How much do you agree with the senator's position on the issue?" (response options: "strongly agree," "somewhat agree," "somewhat disagree," "strongly disagree"). We refer to this as *reported agreement*.
- Second, we asked them: "Which phrase comes closer to expressing the senator's position on immigration?" (response options: "The senator favors an open and lax immigration policy designed to increase the number of immigrants coming into the United States," "The senator favors a closed and restrictive immigration policy

designed to decrease the number of immigrants coming into the United States”). We combined this with each respondent’s pre-treatment stated position on immigration to create a dichotomous measure of whether the respondent’s actual position lined up with the perception of the stance taken by the senator. We refer to this as *perceived agreement*.

- Third, we asked respondents to report their *certainty* in the senator’s position: “How certain are you of the senator’s position on immigration?” (response options: “extremely certain,” “very certain,” “moderately certain,” “slightly certain,” “not certain at all”).
- Fourth, we asked them to report how they thought the senator voted on the immigration legislation: “A comprehensive immigration reform proposal that would provide a path to citizenship for illegal immigrants was recently considered by the United States Senate. Based on the senator's letter, do you think the senator voted for or against this proposal?” (response options: “voted in favor,” “voted against”). We coded whether this *perceived vote* was accurate or not. A naïve assumption for this variable is that most respondents would accurately judge the senator’s vote as all six treatment letters noted the senators’ decisions on the key immigration cloture vote.
- Fifth, we asked respondents to report their perceptions of the senator’s ideology: “We hear a lot of talk these days about liberals and conservatives. Below is a seven-point scale on which the political views that people might hold are arranged from extremely liberal to extremely conservative. Where would you place the senator using this scale?” (response options on seven-point scale ranging from “extremely liberal” to “extremely conservative”).

Constituents' Favorability toward and Likelihood of Voting for Senator. We next use two questions to construct dependent variables that measure whether constituent approval and electoral support of senators are affected by the type of message.

- First, we asked respondents to rate the senator on a 100-point feeling thermometer.¹⁷
- Second, we measured the respondent's *Vote Intention*. We asked respondents "How likely would you be to vote for the senator?" (response options: "extremely likely," "very likely," "somewhat likely," "not too likely," "not likely at all").

Does Tailoring Affect Constituents' Perceptions of the Senator's Position?

We find strong evidence that when a senator tries to explain his vote by selectively mentioning certain actions, respondents change their perceptions of the senator's position. We present full results for all treatment effects in tables and illustrative summaries in the figures. When the respondent disagrees with the senator's roll call vote on the legislation, targeting the letter toward the respondent increased reported agreement by 0.62 points (from 2.32 to 2.94 on the four-point scale) compared to an untargeted letter and 0.53 points (from 2.41 to 2.94) compared to a letter targeted away from the voter (see the first column of Table 3). Both of these differences are statistically significant ($p < .001$) and are substantively meaningful, representing between 18-21% of the total length of the scale. Note that the level of reported agreement from a target letter (2.94) comes close to achieving the reported agreement an untargeted letter where the respondent agrees with the senator's roll call vote (3.22). The key pattern of results is illustrated in the top panel of Figure 1. When the individual disagrees with the senator, tailoring the explanation significantly increases reported agreement, nearly to the benchmark of an

¹⁷ The exact question wording was: "We would like you to rate Senator B using something we call the feeling thermometer. Ratings between 50 degrees and 100 degrees mean that you feel favorable and warm toward the person. Ratings between 0 degrees and 50 degrees mean that you don't feel favorable toward the person and that you don't care too much for that person. You would rate the person at the 50 degree mark if you don't feel particularly warm or cold toward the person."

untargeted letter to an agreeing constituent.

We obtain substantively similar results for the other four measures of perceived senator positions. As shown in Table 4, compared to an untargeted letter, a letter that is targeted to disagreeing constituents decreases correct perception of the senator's roll-call vote by 34.6 percentage points ($p < .001$). Considering that the senator explicitly mentioned her roll-call vote in the letter, this result is quite astounding. By tailoring their explanations, senators can convince constituents that they actually took the *opposite* position from their roll-call votes.

Similarly, as shown in the third column of Table 4, correct perceptions of the senator's roll-call vote decreased by 37.3 percentage points due to targeting ($p < .001$). When reading untargeted letters, constituents come close to perfectly knowing how the senator actually voted on the legislation (90.2% accuracy). However, targeting reduces correct perception to a coin flip (53% accuracy). As shown in the third column on Table 4, targeting reduces reported certainty of the senator's position by 7.5% ($p < .001$).

Finally, sending a targeted letter that mentions compensating actions leads individuals to perceive senators as more ideologically moderate. As shown in Figure 2, when a letter is targeted to people who disagree with the senator's roll call vote, the senator is perceived as being closer to the center of the seven-point ideological scale compared to untargeted letters.

Does Tailoring Affect Constituents' Favorability Toward the Senator?

Compared to writing an untargeted letter, targeting the letter toward the constituent's position improves the senator's favorability. As shown in the second column of Table 3, a letter targeted to a constituent who disagrees with a senator increases the feeling thermometer rating to 61.2 from 46.7 for an untargeted letter, a statistically significant ($p < .001$) and substantively meaningful difference. See the second panel of Figure 1 for a graphical display of the same

information with corresponding 95% confidence intervals for each estimate. Turning back Table 3, it is interesting that the 61.2 rating is about the same as the ratings given to untargeted letters when the constituent agrees with the senator's vote (62.9) as well as letters targeted toward a voter who agrees with the senator (60.0).

Does Tailoring Affect Constituents' Likelihood of Voting for the Senator?

Targeting also increases the likelihood of the respondent voting for the senator. As shown in the final column of Table 3, compared to not targeting a letter towards a disagreeing constituent, tailoring the explaining language boosts the likelihood of voting for the senator to 3.00 from 2.38 for an untailored letter. This is substantively meaningful shift of 0.62 points ($p < .001$), over 20% of the length of the four-point scale. See the second panel of Figure 1 for a graphical display of the same information with corresponding 95% confidence intervals for each estimate. Turning back to Table 3, it is apparent that effect of a targeted letter to a hostile audience is statistically similar to the effects of both untargeted and targeted letters to agreeing constituents.

Conclusion and Implications

In sum, we first conducted a field experiment using sitting U.S. senators as subjects. This experiment provides evidence that senators frequently tailor their explanations in constituent correspondence to suit the views of the constituents they are addressing. The targeting we identify falls far short of total deception to constituents. Senators are just as likely, in fact, to mention the key vote they have taken on an issue independent of whether that vote is in accordance or discordance with the views of a constituent. Instead, senators employ a more subtle strategy when tailoring their messages, which is to selectively provide information about secondary Washington actions that they have taken which accord with the views of their

constituents. Thus, without being openly dishonest, senators nevertheless convey different faces to different audiences.

How effective is this presentational strategy? Our second experiment addresses this question directly by examining how people respond to a prototypical set of the actual letters that senators provided in our field experiment. Our findings suggest that by selectively discussing compensating activities that accord with the views of constituents with whom the senators are in basic disagreement on the key roll call, senators can almost erase the consequences of their disagreement.

Scholars have long suspected that legislators engage in this sort of targeted messaging. Mayhew (1974), for example, simply takes it as a given. Fenno's (1978) extensive empirical investigation, however, finds little evidence to support this conjecture, making our findings novel. Why do we uncover a different pattern than those Fenno identified in his participant observation? One reason may be that explanations offered in person (like Fenno witnessed) versus explanations offered via written letter differ. Another reason may be our experimental protocol in which the subjects are blinded to the fact that they are engaged in an experiment. It seems possible that one limitation of the participant observation approach is that it would bias legislators towards consistency in their messaging because they know they are being observed (as Fenno 1978 notes is a possibility). Our research design allows numerous within-subject comparisons and generates relatively fine-grained data (the letters). Thus it affords the statistical power to detect somewhat subtle differences in the emphasis of legislators' messages. In fact, first-pass analysis of the letters uncovers consistency in both the tendency of senators to respond to constituents and mention a key vote independent of whether the constituent agrees or disagrees with them. It is only a more in-depth coding of the text that uncovers what seem to be

subtle differences in the activities senators emphasize when targeting their letters. Of course, our second experiment demonstrates that these differences have effects on constituent evaluations that are anything but subtle.

Another reason that our study may lead to different conclusions is that the behavior of legislators has evolved since the early 1970s when Fenno conducted his research. Congressional voting has become sharply more polarized in the intervening decades. When polarization was at its low point, legislators may have been able to send consistent messages that would please a wide range of their constituencies. Further, there is evidence suggesting that there has been a decline in the “personal vote” (Burden and Wichowsky 2012, 457), making it difficult for members to offset ideological disagreement with constituency service and other techniques (Primo and Snyder 2010).

In the current environment legislators may find it difficult to justify their relatively extreme voting records to constituents with centrist policy preferences that continue to play a pivotal role in their general elections (Fiorina and Abrams 2011). This pressure may become even more acute on issues where legislators must speak to primary electorates that hold strong and relatively extreme views. Immigration policy, the substantive focus of our experiment, presents just such an issue—at least for Republican legislators. Future work should examine whether such issue-specific characteristics affect the level or type of message targeting by legislators. The rise of micro-targeting in general (Hillygus and Shields 2009), which is partly enabled by the contemporary media environment, may also lead legislators to place more focus on developing effectively tailored messages like the ones we identified in their correspondence.

The targeting of explanations that we identify, of course, might seem secondary if not for the findings of our second experiment. The effectiveness of targeting suggests a number of

positive and normative avenues of inquiry. On the positive side our findings can be framed by recent work on the consequences of strategic ambiguity. The explanations we identified in the correspondence from senators always increased the level of accurate information available to respondents about actions the senators took on immigration. Depending on what information a legislator chooses to include in his or her explanation, however, the level of uncertainty about the legislators overall position on immigration can be increased or decreased. In circumstances where legislators are electorally advantaged by reducing constituent uncertainty over their policy positions, then legislators will give very precise accounts of their position on a roll call of interest to constituents and buttress this with accounts of additional Washington activity. If legislators are electorally advantaged by increasing constituent uncertainty over their policy positions, then legislators will give mixed information to constituents—so much that the explanation may muddle the perception of the legislator’s true policy position. We find evidence of exactly this pattern in data—constituents become more uncertain when legislators discuss a series of Washington actions aimed at compensating for their votes.

The canonical treatment of the strategic use of ambiguity takes as an assumption that incumbent legislators will have difficulty beclouding their true positions on an issue and this leaves challengers with the potentially valuable strategy of ambiguity (Shepsle 1978). Our findings suggest, however, that incumbent legislators have the ability to credibly shift both constituent perceptions of legislators’ policy stances and the precision of constituent views. This pairs with recent experimental findings that identify circumstances in which ambiguity is strategically valuable (Tomz and Van Houweling 2009). In short, this work concludes that ambiguity can be particularly valuable in partisan contexts because partisans tend to see the best in vague candidates affiliated with their own party, while having an unbiased perspective on

vague candidates from the opposition. The ability of incumbents to send targeted messages that manipulate the perceptions that citizens have of their positions and the uncertainty of those perceptions might prove an effective electoral tool.

Additionally, an implication of Kingdon's (1989) claim that legislators search for compelling explanations to give their constituents is that these explanations are effective. Yet no work has ever assessed the effectiveness of actual legislators' explanations (though see McGraw's work which used fictional explanations). This is exactly what we find in the survey experiment. Mostly what the legislators gain out of tailored explanations is political gain, enhanced reputations, and a greater likelihood of reelection.

Normatively, our findings have several implications for conceptions of representation. Implicit in most normative theories of legislative representation is the importance of two-way deliberation between constituents and elected officials (Disch 2011). When elected officials communicate effectively with constituents, democratic legitimacy is enhanced. However, such deliberation in representation can become manipulation by the legislators when communications from the representative shift constituents' perceptions in ways that politically benefit the representative. Mansbridge (2003, 519) distinguishes "manipulation" from "education" by noting that deception by elected officials is manipulation and education is "influence" over the voters' preferences in the future after receiving the explanation. She states that "the existing apparatus in the United States does not facilitate well the processes of mutual education, communication, and influence [of legislators and constituents]" (519-520). Consistent with this line of thought, we have systematic evidence from our survey experiment that voters' approval ratings of legislators increase and perceptions of legislators' positions shift toward the constituent's preferred position. Legislators may use tailored explanations less to educate, and more to manipulate constituent

opinion about the legislators. The use of explanations, often portrayed as methods of constituent education, may instead be used to enhance legislators' electoral and other goals.

Table 1: Do senators hide their roll-call votes in explanations to constituents? No

	<u>Responded to Letter</u>	<u>Mentioned Cloture Roll Call</u>
Constituent and senator agree	71.1%	53.6%
Constituent and senator disagree	75.3%	51.8%
difference	-4.1%	1.8%
p-value	0.58	1.00
N	97	56

Note: The constituent and senator are coded as agreeing if the constituent wrote a pro-immigration letter and the senator voted for cloture, and vice-versa. The p-values are two-tailed and calculated using a within subjects sign-test.

Table 2: Do senators tailor their explanations to constituents by mentioning compensating actions? Yes

	Action Mentioned by Senator		
	<u>Anti-immigration</u>	<u>Pro-immigration</u>	<u>Anti-Pro Balance</u>
Pro-immigration Letter	42.8%	23.20%	19.6
Anti -immigration Letter	55.3%	12.50%	42.8
Difference	12.5%	10.7%	23.2
P-value	0.04	0.07	0.00
N	56	56	56

Note: The cells in the first two columns contain the percentage of letters that mention a pro- or anti-immigration action that the senator took. The “Anti-pro balance” is coded as 1 if a senator mentioned an anti-immigration action, but not a pro-immigration action, 0 if the senator mentioned neither or both, and 1 if the senator mentioned an anti-immigration action but not a pro-immigration action. Defined at the population level it is simply the difference in the rate at which senators mention anti-immigration actions and pro-immigration actions. The p-values are two-tailed and calculated using a within-subject sign test.

Table 3: Effect of Letters on Assessments of Senators, by Roll-Call Agreement

Voter Assessment of Senator			
<u>Voter Agrees with Senator's Roll Call</u>	Perceived Agreement	Feeling Thermometer	Vote Likelihood
Letter Targeted Toward Voter	2.98 (2.88 to 3.08)	60.0 (57.1 to 62.9)	2.98 (2.85 to 3.11)
Letter Not Targeted	3.22 (3.11 to 3.32)	62.9 (59.9 to 66.0)	3.17 (3.03 to 3.31)
Letter Targeted Away from Voter	2.49 (2.38 to 2.59)	50.8 (47.8 to 53.9)	2.59 (2.45 to 2.73)
<u>Voter Disagrees with Senator's Roll Call</u>			
Letter Targeted Toward Voter	2.94 (2.84 to 3.03)	61.2 (58.5 to 64.0)	3.00 (2.87 to 3.12)
Letter Not Targeted	2.32 (2.23 to 2.42)	46.7 (43.9 to 49.4)	2.38 (2.26 to 2.51)
Letter Targeted Away from Voter	2.41 (2.31 to 2.52)	45.4 (42.4 to 48.4)	2.37 (2.23 to 2.50)

Note: A letter is classified as targeted toward a respondent when it was a response to an inquiry of a constituent who expressed the same position on immigration reform as the position selected by the respondent in the pre-treatment survey item. A letter is classified as not targeted if it is a letter from a senator who wrote substantively identical responses to constituents that expressed pro and anti-immigration reform views. A letter is classified as targeted away from a voter if it is a letter that a senator wrote in response to a constituent who expressed a view opposite the one expressed by the respondent in the pre-treatment survey item. Perceived agreement is measured by a fully labeled 4-point scale running from "Strongly agree" to "Strongly disagree." The feeling thermometer is a standard 100 point scale. Vote likelihood is measured by a fully labeled 5-point scale running from "Not likely at all" to "Extremely likely."

Table 4: Effect of Letters on Accuracy and Certainty of Voters about the Positions of Senators

	% Correct about Overall <u>Immigration Position</u>	% Correct about Senator's <u>Immigration Roll Call</u>	Certainty about <u>Senator's Position</u>
Untargeted letter	66.4	90.2	65.5
Targeted to voters who disagree	31.9	53.0	58.0
Difference	34.6 (29.2 to 40.0)	37.3 (31.6 to 42.9)	7.5 (4.2 to 10.9)

Note: Respondents are classified as having an accurate perception of a senator's overall position if they think the senator favors an "open and lax immigration policy" and the senator voted for cloture on immigration reform or if they think the senator favors "closed and restrictive immigration policy" and the senator voted against cloture. Respondents are classified as being correct about a senator's immigration roll call if their perceptions are consistent with the senator's cloture vote. We measured respondent certainty about the senator's position with a fully labeled five-point scale that runs from "not certain at all" to "very certain," which we rescaled to 0-100 for this table.

Figure 1: Gains from targeting a letter to a voter who disagrees with a roll call

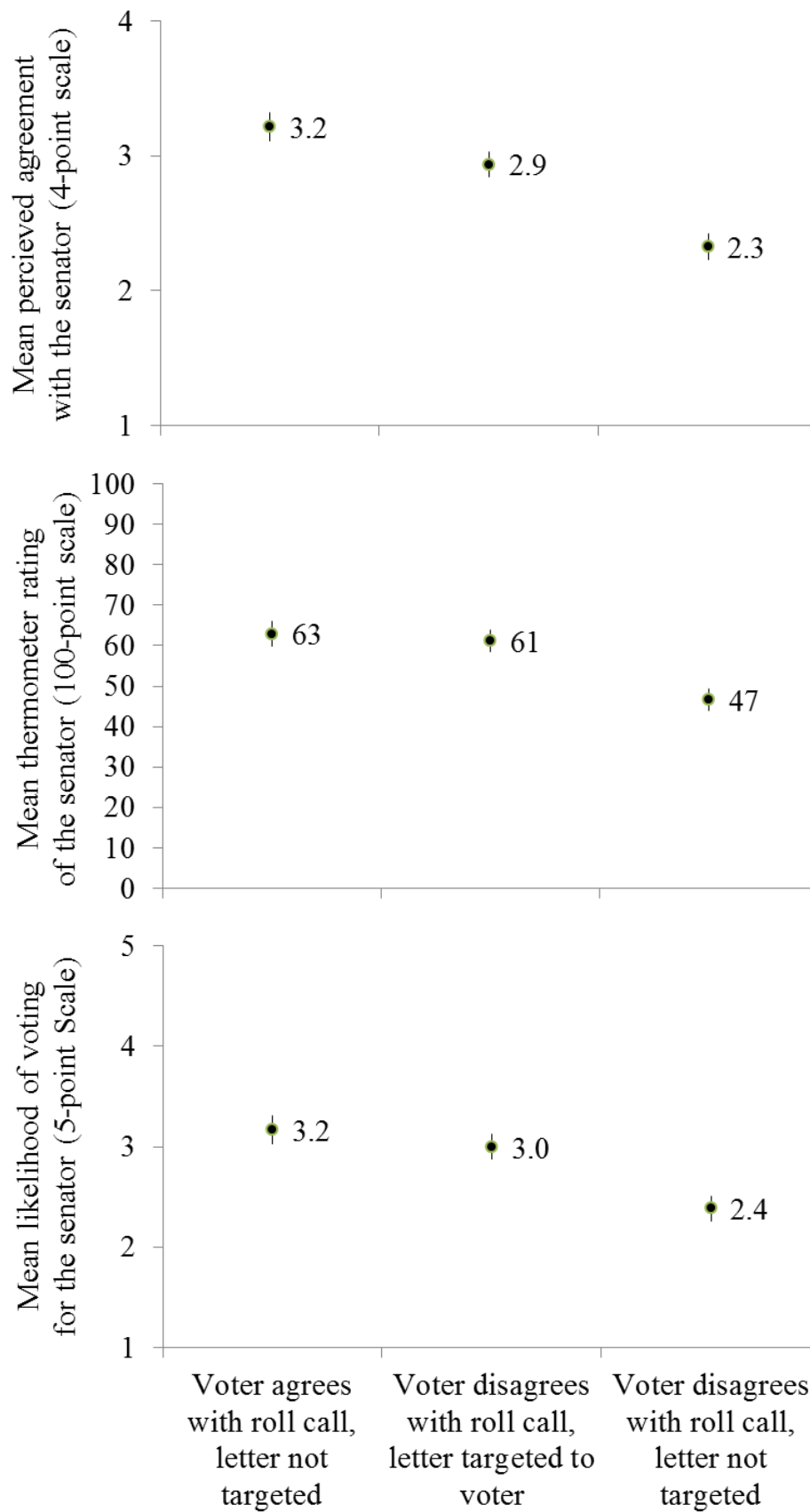
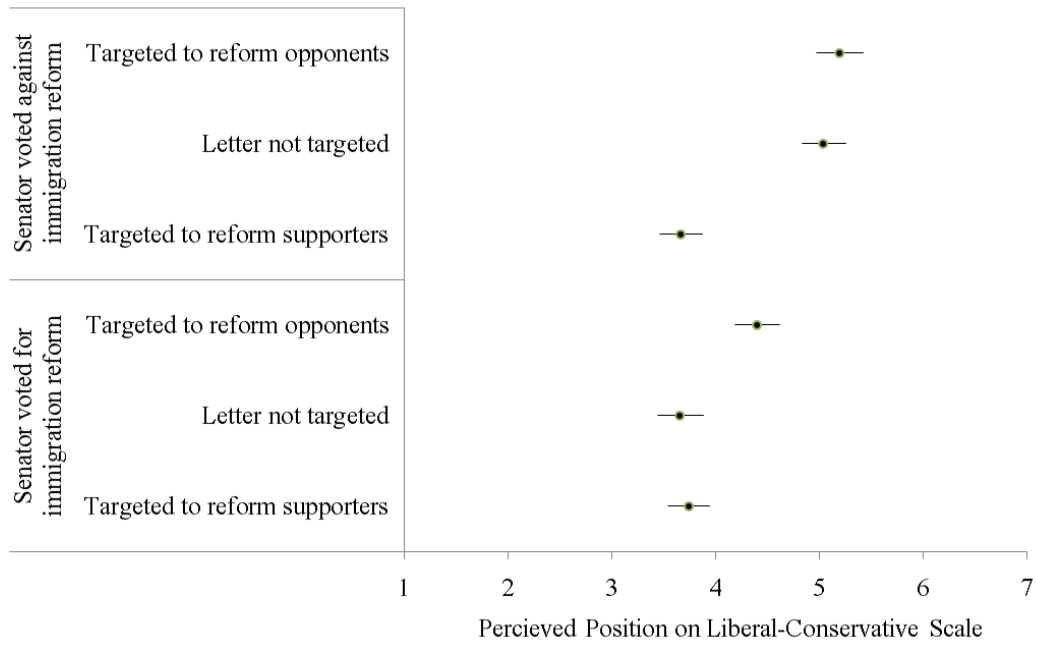


Figure 2. Effect of Letter on Ideological Perceptions of Senators



Note: These are ratings of the senators on standard 7-point ideology scale.

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Appendix 1: Text of Treatment Letters in Experiment 1

Anti-Immigration Letter:

Dear Senator [insert name of senator],

Our laws are being violated left and right by illegal immigrants streaming across the border from Mexico. They disregard our laws to get here. This disrespect for the law is exactly why we should not then turn around and give them citizenship. You must support a strong stance against illegal immigration into this country and not support bills that reward people that break the law.

Too many good American workers are out of work and on welfare now because of the Mexicans. They take away jobs from Americans who need them and this is unacceptable. Also, they are a drain on the federal treasury and take services away from Americans who need them and pay for them. We need a wall between this country and Mexico and we DO NOT need amnesty.

We need people in the U.S. Senate that are willing to take a strong stand against people that break the law and take American jobs. They ruin our country. We need people in the Senate that are willing to make the hard decisions necessary to protect Americans. I hope you are one of those people.

Sincerely,
[insert constituent name]

Pro-Immigration Letter

Dear Senator [insert name of senator],

Our country needs good people who are willing to work to make our country a better place. That is why I am writing to ask you to support peaceful immigrants who wish to enter the U.S. These people take jobs that no native born person in the United States want. They contribute in meaningful ways to American society.

Immigrants only want a better life for themselves. They want the American Dream. It is unfair that our fore-fathers came here from other countries and now we are turning people away just because they weren't born on this side of the border. Opponents of Immigrants want to build a wall around this country. Why do we want to build walls? Walls only cause division. We should not be building walls! America cannot close itself off from its neighbors. While we must control the border

for security reasons, I am opposed to splitting up families.

Immigrants pay taxes and contribute to American society. Peaceful immigrants should be supported and not vilified. I hope you will support the rights of people to enter the United States in search of a better life.

Thank you,
[insert constituent name]

Appendix 2: Text of Treatment Letters in Experiment 2

Pro-Immigration Senator A's Tailored Letter to Pro-Immigration Constituent

I have consistently supported fair, comprehensive, and effective immigration reform legislation, and I regret that the Senate failed to reach common ground on this issue. The bill before the Senate was by no means perfect, but we should have been able to work out a reasonable compromise to solve a serious problem that isn't going away any time soon. I know that the people are tired of a politics that holds progress hostage because of Congress' inability to come together and find solutions to big problems.

Despite this bill's shortcomings, I could not accept the status quo and ultimately voted in favor of continuing debate on the legislation. This immigration reform legislation attacked the immigration problem by tightening border security, increasing enforcement against employers who hire illegal workers, and establishing a process by which undocumented workers and their families could earn citizenship after paying fines and learning English. Further, the bill created a temporary program for foreign workers, who would have been required to return to their homeland after a specified period.

As with most complex legislation, I felt this bill could have been improved in various areas, and I tried to do that. I supported a series of amendments to improve this legislation's most problematic provisions, including its proposed points system for future immigration and its employment verification system. I proposed two amendments to alter the proposed points system, which the American Immigration Lawyers Association described as a "radical departure from our existing immigration system" that could amount to "an exercise in social experimentation on the grandest scale." I also introduced an amendment to improve the employment verification system in three key sections: documentation a worker can present for work; remedies for workers who are legally eligible to work and who lose their job if the system results in errors; and discrimination protections for workers in cases where verification takes longer than it should. Regrettably, these amendments were not adopted.

The Senate's failure to pass comprehensive immigration reform means that this legislation is likely dead for the foreseeable future. Still, I will continue to work with my colleagues in the Senate toward reasonable and effective improvements to our country's immigration system.

Pro-Immigration Senator A's Tailored Letter to Anti-Immigration Constituent

Recently, the Senate soundly defeated S.1348, the immigration reform bill. It attacks the immigration problem in a comprehensive fashion by tightening border security, increasing enforcement against employers who hire illegal workers, and establishes a process by which undocumented workers and their families can earn citizenship after paying fines and learning English. Further, the bill would create a temporary program for foreign workers who must return to their homeland after a specified period.

The most contentious elements of the bill were its path to citizenship, the new point system it proposes for future immigration and its guest worker program. The Senate considered a number

of amendments to the bill. For example, I supported an amendment to reduce the number of temporary workers permitted to enter the country annually from 400,000 to 200,000 as well as an amendment to end the temporary worker program after five years. Both of these amendments passed and became part of the bill. On the bill, I voted for cloture and to end debate. In the final analysis, however, the Senate refused to cut off debate on the bill, thereby likely killing it for the remainder of this Congress.

I fully understand the strong feelings many hold regarding the adverse effects of illegal immigration. Indeed, illegal immigration causes significant consequences that affect American workers as well as health and education infrastructure. Many people understandably believe that undocumented immigrants should not be rewarded for flouting U.S. law and suggest we should just seal our borders and deport undocumented workers currently living in the country. On the other hand, it is significant that the Department of Homeland Security recognizes that identifying and deporting 12 million undocumented workers currently working in this country would be both difficult logistically and disruptive to the American economy. Ultimately, this dilemma about how to treat undocumented aliens currently in the country proved too tough to resolve.

Although the Senate has now moved on to consider other issues, you may be certain that I will remember your perspective should similar immigration reform legislation come before the Senate in the future.

Pro-Immigration Senator B's Untailored Letter

After careful consideration of the legal and security issues involved, I have supported comprehensive immigration reform, including strong border and interior enforcement, improved employer verification, and a guest worker program that allows long-time residents to earn a legalized status. I believe it is in our national security interest to bring people who are here illegally out of the shadows, and it would be unrealistic to deport 12 million people from our communities and our economy.

I could not, however, support the Secure Borders, Economic Opportunity and Immigration Reform Act (S. 1348) in its current form. S. 1348 was never considered by a Senate Committee and was brought directly to the floor before most of us had a chance to fully review it. Senate leadership blocked many amendments, including my own, that would have improved the bill. The repercussions of this bill are too great, and I could not in good conscience support moving forward with legislation that is incomplete and unfinished. For this reason, I voted against a procedural motion that would have pushed the bill forward without further debate. However, I am optimistic that the Senate will resume debate of immigration reform legislation in the near future.

With regard to family reunification, S. 1348 includes a provision that would allow all family-based immigrant visa/green card applications submitted before May 2005 to be expedited – collapsing a 30 year backlog to just 8 years. I supported an amendment that would have pushed back this date to January 1, 2007 and permitted almost one million additional family members of U.S. citizens to join their loved ones in the U.S. While a majority of my colleagues joined me in support of this amendment, Senate rules unfortunately required 60 votes to overcome a

procedural motion.

While immigration reform must reflect the American values of fairness and opportunity, it must also show respect for the rule of the law. It is my hope that proper debate on a border security and comprehensive immigration reform can be held in the Senate, and the result will be legislation that provides for a safer, more secure and prosperous America.

Anti-Immigration Senator C's Tailored Letter to Anti-Immigration Constituent

I believe our immigration laws are broken and need to be fixed. We need to safeguard our borders, secure our workplace, and positively identify who is in our country. It became clear to me that the comprehensive immigration reform legislation (S. 1639) being debated by the Senate still had too many problems and there was not enough time to correct them.

This issue is too important not to get it right. To that end, I voted "no" on a cloture motion to this bill. I believe that improving our border enforcement capabilities must be central to any immigration reform legislation. Our unprotected borders are unacceptable and represent a crisis which must be dealt with decisively and without delay. The hastily drafted immigration measure contained a number of loopholes I would like to have had the opportunity to fix. With regard to the current illegal immigrant population, I was concerned that S. 1639 would have given illegal immigrants preferential treatment for visas and citizenship. The bill needed additional provisions to safeguard against gang members, sexual predators, and visa overstays. In addition, proposed amendments likely would have weakened the workplace enforcement measures that are critical to the success of any immigration package.

I worked hard to include an amendment to S. 1639 that would have closed another loophole, by ending the practice of sanctuary cities. Sanctuary cities are cities where local law enforcement is barred from so much as asking the people they come into contact with about their immigration status. As a consequence, these cities are able to evade their legal responsibilities to share such information with federal authorities. This is increasingly important as 40 percent of the current illegal population entered the U.S. legally and simply overstayed their visas. This means that even if we had the best border security in the world, we would still have an illegal immigration problem. My amendment (S. Amdt. 1934, Division 14) would have lifted that gag order and allowed law enforcement officers in these cities to inquire about an individual's immigration status and share their findings with the Department of Homeland Security.

We are still a country with an immigration system in crisis, and even though this bill failed, the fact remains that we must focus on securing our borders. I am hopeful that we will return to address the holes in our immigration laws and find a way forward that enjoys the confidence of the American people.

Anti-Immigration Senator C's Tailored Letter to Pro-Immigration Constituent

Our immigration system is in crisis, and we need to find a thoughtful and effective solution that combines a number of reforms. A comprehensive reform to our immigration laws must have, as essential ingredients: a strengthening of our borders, greater cross-cooperation with our

neighbors, strict but fair enforcement of our laws, federal assistance to our state and local governments, strict penalties for those who exploit undocumented workers, and a path to earned legal status for those who are here, working hard, paying taxes, respecting the law, and willing to meet a high bar.

That is why I voted for cloture on the immigration bill, a procedure that would have kept the immigration reform process moving forward in the Senate. Unfortunately, the bill failed to achieve the 60 votes necessary to continue.

In addition, it is imperative that we repair those broken portions of our immigration system that irrevocably damage families and force citizens and lawful immigrants to live apart from their spouses and children overseas. This is why I introduced an amendment during consideration of the immigration reform bill that would have taken steps to protect the sanctity of families. Our American values demand no less.

I am deeply disappointed that we still have not solved our nation's immigration crisis. We need comprehensive immigration reform, and I hope that we can achieve legislation that secures our borders, respects the rule of law, and honors both our history as a nation of immigrants and our core American values of respect and compassion. Balancing all of these interests is not easy, but it is a debate we must take on.

Anti-Immigration Senator D's Untailored Letter

We are a nation of immigrants, but we are also a nation of laws. While our country, throughout its history, has opened the welcoming arms of liberty to immigrants from around the world, securing our borders and enforcing our laws are of critical importance and must become urgent priorities. As Senator, it is my duty to do all that I can do to ensure that the United States is safe for its citizens and that all of our laws are respected. It is important that federal, state and local law enforcement officers have the tools they need to respond to and protect their communities from potential threats.

As you know, the Comprehensive Immigration Reform Act (S. 1348) was recently introduced. This bill was identical to the Comprehensive Immigration Reform Act (S. 2611) passed by the Senate in the 109th Congress. In my opinion, this bill puts the cart before the horse by rushing to legalize the estimated 12 million illegal aliens, rather than taking immediate actions to secure our borders through enforcement and securing our communities by enforcing the laws on the books.

I voted against moving forward with S. 1348 because I had serious concerns with a number of provisions, particularly those targeted at illegal aliens already in the United States. While I could have supported further consideration of a bill that provided temporary worker permits to help bring people out of the shadows, I could not support granting a path to citizenship for those who have broken our laws and entered this nation illegally. Furthermore, adequate time was not provided to debate various amendments that had been proposed, including one I introduced that would have ensured that illegal aliens convicted of DWI do not receive legal status in the United States.

I fought to defeat S. 1348 because it rushed to legalize millions of illegal aliens, which is not the urgent matter at hand. The real crisis is securing our borders and enforcing our laws, and this should be Congress's first priority.